

1 ENGROSSED HOUSE  
2 BILL NO. 4268

By: Johns and Waldron of the  
House

3 and

4 Pugh of the Senate

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6  
7 [ education - Teacher Effectiveness and Excellence  
8 Act - terms - growth-based Teacher Compensation  
9 Program - State Board of Education - pilot program  
10 - eligibility - criteria - compensation - rules -  
11 National Board Certification Bonus Program - bonus  
12 - Office of Educational Quality and Accountability  
13 - report - codification - effective date -  
14 emergency ]

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17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law not to be  
19 codified in the Oklahoma Statutes reads as follows:

20 This act shall be known and may be cited as the "Teacher  
21 Effectiveness and Excellence Act".

22 SECTION 2. NEW LAW A new section of law to be codified  
23 in the Oklahoma Statutes as Section 6-213 of Title 70, unless there  
24 is created a duplication in numbering, reads as follows:

1       A. As used in this section:

2       1. "Eligible teacher" means a full-time certified teacher in  
3 grades fourth through eighth teaching English language arts and  
4 mathematics;

5       2. "Participating school" means a public or charter elementary  
6 or middle school serving students in grades fourth through eighth;

7       3. "Recognized teacher" means an eligible teacher whose  
8 students demonstrate student growth at or above an established  
9 growth threshold; and

10      4. "Student academic growth" means annual student progress as  
11 measured by the Oklahoma State Testing Program.

12      B. There is hereby established the Growth-based Teacher  
13 Compensation Program to be administered by the State Board of  
14 Education. Beginning with the 2026-2027 school year, the pilot  
15 program shall operate for a minimum of three (3) consecutive school  
16 years.

17      C. To be eligible to participate in the program, teachers shall  
18 be a full-time certified teacher in grades fourth through eighth  
19 teaching English language arts and mathematics at a participating  
20 school. The pilot program shall consist of one thousand five  
21 hundred teachers representing approximately fifteen percent (15%) of  
22 the highest performing teachers serving grades fourth through eighth  
23 in eligible schools in Oklahoma. The State Board of Education shall  
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1 establish criteria for the selection of recognized teachers to  
2 participate in the pilot program.

3 D. Recognized teachers participating in the pilot program shall  
4 receive annual performance-based compensation under the program as  
5 follows:

6 1. Compensation shall be based solely on measurable student  
7 academic growth. Such growth shall be calculated using a value-  
8 added model based on a rolling two-year period of statewide  
9 assessment data; provided, however, during the first year of program  
10 implementation, compensation shall be calculated using the previous  
11 and current year of academic growth data;

12 2. The State Department of Education shall place participating  
13 recognized teachers into three performance tiers based on their  
14 statewide student growth percentiles as determined by student growth  
15 on Oklahoma State Testing Program assessment data;

16 3. The percentile distribution shall be adjusted as necessary  
17 to ensure that total annual expenditures do not exceed available  
18 funding for the program;

19 4. Participating recognized teachers shall be identified using  
20 equivalent performance tiers which may include Tier 1 (95th  
21 percentile and above), Tier 2 (90th through 94th percentiles), and  
22 Tier 3 (85th through 89th percentiles); and

23 5. Awards shall be paid from the Teacher Empowerment Revolving  
24 Fund, created in Section 6-190.2 of Title 70 of the Oklahoma

1 Statutes by the State Department of Education as supplemental  
2 compensation. The performance-based compensation shall not be  
3 included in the calculation of the teacher's salary for purposes of  
4 meeting the district or statutory minimum salary schedule or for  
5 purposes of compensating Oklahoma Teachers' Retirement System  
6 contributions or benefits. No participating school shall be liable  
7 for payment of the performance-based compensation pursuant to this  
8 section.

9 E. The State Board of Education shall promulgate rules to  
10 implement the Growth-based Teacher Compensation Program in  
11 accordance with this section.

12 SECTION 3. NEW LAW A new section of law to be codified  
13 in the Oklahoma Statutes as Section 6-214 of Title 70, unless there  
14 is created a duplication in numbering, reads as follows:

15 A. As used in this section:

16 1. "Eligible teacher" means any certified teacher in any  
17 subject area or grade level who is employed by a public school  
18 district in this state; and

19 2. "National Board Certification" means certification granted  
20 by the National Board for Professional Teaching Standards to a  
21 teacher who has successfully completed all requirements for initial  
22 certification or renewal, as applicable.

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1       B. There is hereby established a National Board Certification  
2 Bonus Program for eligible teachers who hold or attain National  
3 Board Certification.

4       C. An eligible teacher who attains, or has attained and  
5 continues to hold, National Board Certification on or after the  
6 effective date of this act shall receive an annual bonus of Five  
7 Thousand Dollars (\$5,000.00) from the State Board of Education for a  
8 five-year period subject to his or her continued employment with a  
9 public school district in this state and maintenance of National  
10 Board Certification.

11       D. To begin receiving bonus payments, an eligible teacher shall  
12 submit proof of his or her National Board Certification to the State  
13 Department of Education to receive his or her first annual bonus  
14 payment which shall be paid no later than January 31 each year.  
15 Bonuses shall be paid from the Teacher Empowerment Revolving Fund,  
16 created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by  
17 the State Department of Education as supplemental compensation. The  
18 bonus shall not be included in the calculation of the teacher's  
19 salary for purposes of meeting the district or statutory minimum  
20 salary schedule or for purposes of compensating Oklahoma Teachers'  
21 Retirement System contributions or benefits. No school district  
22 shall be liable for payment of bonuses pursuant to this section.

1 E. The State Board of Education shall promulgate rules to  
2 implement the National Board Certification Bonus Program in  
3 accordance with this section.

4 SECTION 4. NEW LAW A new section of law to be codified  
5 in the Oklahoma Statutes as Section 6-215 of Title 70, unless there  
6 is created a duplication in numbering, reads as follows:

7 A. 1. The Office of Educational Quality and Accountability  
8 shall contract with an independent evaluator to conduct a rigorous  
9 evaluation and report of both:

10 a. Growth-based Teacher Compensation Program

11 implementation fidelity, and

12 b. Growth-based Teacher Compensation Program and the  
13 National Board Certification bonus effects on student  
14 achievement and teacher workforce outcomes.

15 2. The evaluation created by an independent evaluator shall  
16 include:

17 a. comparison groups,

18 b. longitudinal student growth analysis,

19 c. workforce outcomes, including retention and  
20 recruitment, and

21 d. the number of teachers who have received a bonus for  
22 obtaining National Board Certification as provided for  
23 in Section 3 of this act.

1 B. 1. Beginning January 1, 2028, the State Department of  
2 Education shall submit the results of the evaluation and report to:

3 a. the Governor,

4 b. the President Pro Tempore of the Oklahoma State  
5 Senate, and

6 c. the Speaker of the Oklahoma House of Representatives.

7 2. The evaluation shall include:

8 a. number of participating teachers and schools,

9 b. growth distribution results,

10 c. compensation payments,

11 d. early-grade bonus distributions, and

12 e. findings from the independent evaluation.

13 SECTION 5. This act shall become effective July 1, 2026.

14 SECTION 6. It being immediately necessary for the preservation  
15 of the public peace, health or safety, an emergency is hereby  
16 declared to exist, by reason whereof this act shall take effect and  
17 be in full force from and after its passage and approval.

1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate